2026:AHC:214297

A.F.R.
Reserved on 22.09.2026
Delivered on 13.10.2026

HIGH COURT OF JUDICATURE AT ALLAHABAD

CRIMINAL APPEAL No. - 1865 of 1984

Jaivir Singh and another

…..Appellant(s)

Versus

State of U.P.

…..Respondent(s)

Counsel for Appellant(s) : Sidharth Shukla
Counsel for Respondent(s) : A.G.A.

Court No. - 91

HON'BLE SANTOSH RAI, J.

1. Heard Sri Amit Kumar Srivastava learned counsel for the appellant and Sri Rajmani Yadav, learned A.G.A. for the State and perused the record.

2. This appeal is preferred against the judgment and order dated 09.07.1984 passed by the Sessions Judge, Bareilly in Criminal Sessions Trial No.134 of 1984, State vs. Jaivir Singh and another, whereby the appellants Jaivir Singh and Munna Singh alias Priyavir were convicted under Section 325 read with Section 34 I.P.C. and sentenced to undergo five years' rigorous imprisonment each with a fine of Rs.500 and in default of payment of fine to undergo one year’s further rigorous imprisonment.

3. The accused-appellant no.1 Jaivir Singh died during pendency of this appeal, hence, the appeal against Jaivir Singh was abated by this Court vide order dated 14.11.2025. The present appeal is confined to the appellant no.2 namely Munna Singh alias Priyavir only.

4. As per prosecution case, the accused appellants Jaivir Singh and Munna Singh alias Priyavir are residents of village Atarchendi, P.S. Bisharatganj, and own some cultivable land in village Bahjoia. On the night of 19/20.08.1983, accused appellant no.2 Munna Singh was injured by a gunshot. He lodged a report against 3–4 unknown persons. The accused persons, however, suspected the deceased Leeladhar Sharma to be responsible for that incident. On 25.11.1983 at about 05 P. M., Leeladhar Sharma was going to look after his field, situated north of the village. When he reached the gram (chana) field of Deo Dutt, about 25 paces from Deo Dutt's Boring, both accused, armed with lathis, accosted him. Accused Jaivir Singh exhorted Munna Singh, saying: *"Isi sale ne goli marvai thee. Isi sale ko maro.*" The accused then started beating Leeladhar Sharma with their lathis. Meanwhile, Nand Lal and Ram Dayal (P.W.5) arrived and challenged the accused. Deo Dutt (P.W.1) was also present near his Boring and saw the occurrence. The accused fled towards their village in the north. Leeladhar Sharma was severely injured. P.W.2 Ram Sewak, resident of mohalla Pacca Katra, Aonla, was in the village and arrived soon after the occurrence. *He scribed the written report (Ext. Ka.1) at the dictation of Leeladhar Sharma(deceased).* Ram Dayal (P.W.5) brought a bullock cart, on which Leeladhar Sharma was taken to P.S. Aonla, about four and a half kilometres away, reaching there at about 8.55 P.M. on the same night (25.11.1983). The report was lodged there.

Check F.I.R. (Ext. Ka.5) was prepared and a case was registered in the General Diary (G.D.), copy of which is Ext. Ka.6.

5. The injuries of Leeladhar Sharma were noted in the G.D., and he was sent to the Male Hospital, Aonla, with letter Ext. Ka.8 for medical examination. S.I. Sia Ram Pandey was entrusted with the investigation soon after the case was registered at the police station. He recorded the statement of injured and Ram Sewak under Section 161 Cr.P.C. and forwarded Leeladhar Sharma to Aonla Hospital for medical examination. He also came to the hospital and examined P.W.2 Ram Sewak. He also visited the scene of occurrence in village Bahjoia and examined witnesses, including Deo Dutt and Ram Dayal. He made a spot inspection and prepared the site plan (Ext. Ka.18). He did not find blood at the place of occurrence. The accused were searched for but could not be found; search memos (Exts. Ka.19 and Ka.20) were prepared. The accused appeared in court on 02.12.1983. The Investigating Officer came to Sadar, interrogated the accused and on receiving information of the death of Leeladhar Sharma in the hospital, the case was converted to Section 304 IPC. The charge sheet was submitted before the trial court under section 304,325 and 323 IPC.

6. The Sessions Judge Bareilly framed charges against the accused appellants under Section 302/34 IPC on 23.05.1984.

7. The prosecution examined P.W.1 Deo Dutt, P.W.2 Ram Sewak Sharma, P.W.3 Dr. C. P. Singhal, P.W.4 Dr. Adarsh Sanghi, P.W. 5 Ram Dayal, P.W.6 Sia Ram Pandey and P.W. 7 Parmanand.

8. The statements of accused appellants were recorded under Section 313 Cr.P.C., where they denied the allegation levelled against them by the prosecution and pleaded false implication on account of enmity.

9. Dr. C. P. Singhal, Medical Officer, examined Leeladhar Sharma at about 9.30 P.M. on 25.11.1983 and found the following injuries (injury memo Ext. Ka.2):

1.Traumatic swelling 19 cm x 10 cm on the frontal side of the right leg.

2.Traumatic swelling 14 cm x 7 cm on the medial side of the right ankle.

3.Bruise 9 cm x 2 cm on the inner aspect and lower part of the right thigh. Colour was red.

4.Bruise 2 cm x 2 cm on the outer aspect of the upper part of the left thigh. Colour was red.

5.Traumatic swelling 30 cm x 10 cm on the front aspect of the left leg.

6.Bruise 22 cm x 2.5 cm on the outer aspect of the middle part of the left thigh. Colour was red.

7.Traumatic swelling 21 cm x 10 cm on the front side of the right upper arm.

8.Traumatic swelling 20 cm x 10 cm on the front side of the right upper arm.

9.Bruise 19 cm x 2 cm on the back of the upper right chest, 1 cm away from the midline. Colour was red.

10.Bruise 15 cm x 2 cm on the back of the right upper chest, crossing injury No. 7. Colour was red.

11.Bruise 18 cm x 2 cm on the back of the upper chest, 2 cm away from the midline. Colour was red.

The general condition of the patient was reported to be very poor. All the injuries were kept under observation. The doctor found that the injuries were caused by a blunt weapon and that their duration was fresh. Dr. Singhal referred the case to the District Hospital, Bareilly, after medical examination, but did not admit the patient in his hospital. Leeladhar Sharma could not be taken to the District Hospital and died in Aonla Hospital at about 3.50 A.M. on the morning of 26.11.1983.

10. The dead body was produced for post-mortem examination, which was held by Dr. A. Sanghi (P.W.4) at 4.30 P.M. on 26.11.1983 (post-mortem memo Ext. Ka.4). The deceased was aged about 45 years and had died about half a day prior to the examination. The doctor found the following ante-mortem injuries:

1.Abraded contusion with soft tissue swelling over the whole of the upper arm, with multiple fractures of the underlying humerus bone.

2.Contusion 4" x 1" over the right side of the chest, back, in the scapular region.

3.Contusion 5" x 1" over the left side of the back.

4.Contusion 5" x 1½" on the left side, back of the chest, outer part.

5.Abraded contusion with soft tissue swelling, 7" x 6", over the right upper arm, with multiple fractures of the humerus bone.

6.Soft tissue swelling over the whole of the back of the right hand.

7.Abrasion 0.5" x 0.2" over the left iliac crest of the hip bone.

8.Contusion 5" x 1", vertically placed, over the anterior part of the left hand.

9.Contusion 8½" x 1½" on the upper part of the left thigh.

10.Multiple abraded contusions with soft tissue swelling over the whole of the left leg, along with soft tissue swelling of the whole area of the left foot. Three punctured wounds of size 0.2" to 0.3", elliptical. These wounds were deemed to be caused by multiple fractured pieces of bone piercing through the skin.

11.Abraded contusion with soft tissue swelling over the whole of the right leg, with fractures of the bones of the leg.

In the opinion of the doctor, *death was caused due to shock and haemorrhage as a result of the injuries.*

11. The trial court held that P.W. 1 Deo Dutt, undoubtedly owned a tube- well about two furlongs north of the abadi of village Bahjuiya, and a gram field about 25 paces west of his Boring. His evidence that he had gone to look after his fields and was near his Boring at about 5 P.M., when the accused accosted Leeladhar Sharma in his gram field, was found to deserve weight, as his presence was natural and probable. The witness was a first cousin of the deceased. The court held that this relationship does not by itself discredit the evidence of a witness whose presence is otherwise natural and probable; on the contrary, closeness with the victim is a guarantee against the implication of innocent persons while the real culprits escape.

12. P.W. 5 Ram Dayal is a resident of the same village. He deposed that at the time of the occurrence he was going towards the Boring of Deo Dutt to arrange water for irrigating his field, situated towards the north-east of the village; that he had another chak about 4–5 chaks away towards the east; and that the field he had to irrigate lay towards the north-east. The defence contended that Ram Dayal had no field in the north-east and that he used to irrigate from his own Rahat.

13. In support, the defence examined Lekhpal Krishna Pal, who stated that Ram Dayal had three chaks: chak No.222, about ¾ furlong east of the village; and chaks Nos. 382 and 388, about one furlong south-east of the village, with Ram Dayal's Rahat in chak No. 388. He disclosed that chak No. 222 was one furlong south-east of Deo Dutt's Boring and far from chak No. 388.

14. The trial court held that Ram Dayal's evidence that he had to arrange water for irrigating his field near Deo Dutt's Boring for paddy cultivation was truthful and worthy of belief, and that his presence was natural and probable, not a matter of chance. It found that he had no closeness with the victim or ill-will against the accused, though he admitted being on visiting terms with Leeladhar Sharma; his independence was held not to be tarnished by any fact or circumstance. The court accepted his evidence that he saw the accused belabouring Leeladhar Sharma with lathis in the gram field of Deo Dutt at about 5 P.M. from a distance of 20–25 paces, and that the accused fled when he was 5–6 paces away from them, as reliable.

15. Upon careful examination of the testimony of P.W.1 Deo Dutt and P.W.5 Ram Dayal, this Court finds that no material contradiction or inconsistency has emerged in their statements with regard to the manner of occurrence, the participation of the accused-appellant, and the assault committed upon the deceased with lathis.

The presence of the appellant no.2 at the place of occurrence has been found natural and probable by the trial court. The minor discrepancies, if any, do not go to the root of the prosecution case or render their testimony unreliable. Their statements also find corroboration from the medical evidence regarding the nature and location of the injuries sustained by the deceased. The mere relationship of P.W.1 with the deceased or the fact that P.W.5 was acquainted with him is not, by itself, sufficient to discard their otherwise credible testimony.

16. The appreciation of the medical evidence by the trial court suffers from a serious legal infirmity, inasmuch as the cumulative effect of the injuries sustained by the deceased has not been properly considered. The injury reports and the post-mortem examination disclose multiple extensive injuries involving both upper limbs, both legs and the chest and back regions. In particular, the multiple fractures of the humerus and the bones of the legs, coupled with the extensive contusions over the chest and back, were material circumstances requiring a comprehensive assessment of the nature, severity and collective effect of the injuries. The trial court appears to have considered the injuries in isolation rather than examining their cumulative impact in the light of the medical evidence and the eventual death of the injured.

17. In the case of **Virsa Singh vs. State of Punjab 1958 SCC OnLine SC 37** the Hon'ble Supreme Court has held as under:-

> *"14. To put it shortly, the prosecution must prove the following facts before it can bring a case under Section 300 "thirdly".*
> *15. First, it must establish, quite objectively, that a bodily injury is present.*
> *16. Secondly, the nature of the injury must be proved; these are purely objective investigations.*
> *17. Thirdly, it must be proved that there was an intention to inflict that particular bodily injury, that is to say, that it was not accidental or unintentional, or that some other kind of injury was intended.*

18. Once these three elements are proved to be present, the enquiry proceeds further and.
19. Fourthly, it must be proved that the injury of the type just described, made up of the three elements set out above, is sufficient to cause death in the ordinary course of nature. This part of the enquiry is purely objective and inferential and has nothing to do with the intention of the offender.
20. Once these four elements are established by the prosecution (and, of course, the burden is on the prosecution throughout), the offence is murder under Section 300 "thirdly". It does not matter that there was no intention to cause death. It does not matter that there was no intention even to cause an injury of a kind that is sufficient to cause death in the ordinary course of nature (not that there is any real distinction between the two). It does not even matter that there is no knowledge that an act of that kind will be likely to cause death. Once the intention to cause the bodily injury actually found to be present is proved, the rest of the enquiry is purely objective and the only question is whether, as a matter of purely objective inference, the injury is sufficient in the ordinary course of nature to cause death. No one has a licence to run around inflicting injuries that are sufficient to cause death in the ordinary course of nature and claim that they are not guilty of murder. If they inflict injuries of that kind, they must face the consequences; and they can only escape if it can be shown, or reasonably deduce, that the injury was accidental or otherwise unintentional."

18. In the case of **Darbara Singh vs. State of Punjab, (2013) 1 SCC (Cri)1037** the Hon'ble Supreme Court has held as under:-

"10. … So far as the question of inconsistency between the medical evidence and the ocular evidence is concerned, the law is well settled that, unless the oral evidence available is totally irreconcilable with the medical evidence, the oral evidence would have primacy. In the event of contradictions between medical and ocular evidence, the ocular testimony of a witness will have greater evidentiary value vis-à-vis medical evidence and when medical evidence makes the oral testimony improbable, the same becomes a relevant factor in the process of evaluation of such evidence. It is only when the contradiction between the two is so extreme that the medical evidence completely rules out all possibilities of the ocular evidence being true at all, that the ocular evidence is liable to be disbelieved."

19. In the case of **State of Madhya Pradesh vs. Goloo Raikwar and another (2016) 12 SCC 139** the Hon'ble Supreme Court has held as under:-

"***8.*** *In State of A.P. v. Rayavarapu Punnayya [State of A.P. v. Rayavarapu Punnayya, (1976) 4 SCC 382 : 1976 SCC (Cri) 659] , this Court had to deal with a similar situation. In that case, the accused, 5 in number, beat the victim with sticks on the legs and arms of the deceased and when*

hospitalised the deceased succumbed to his injuries. The medical officer who conducted the autopsy opined that the cause of death was shock and haemorrhage resulting from multiple injuries and the said injuries were cumulatively sufficient to cause death in the ordinary course of nature. The question arose whether in such a case when no significant injury had been inflicted on a vital part of the body, and the weapons used were sticks and the accused could not be said to have the intention of causing death, the offence would be "murder" or merely "culpable homicide not amounting to murder". This Court answered the question in these terms : (SCC p. 394, para 39)

> *"39. … All these acts of the accused were preplanned and intentional, which, considered objectively in the light of the medical evidence, were sufficient in the ordinary course of nature to cause death. The mere fact that the beating was designedly confined by the assailants to the legs and arms, or that none of the multiple injuries inflicted was individually sufficient in the ordinary course of nature to cause death, will not exclude the application of clause Thirdly of Section 300. The expression "bodily injury" in clause Thirdly includes also its plural, so that the clause would cover a case where all the injuries intentionally caused by the accused are cumulatively sufficient to cause the death in the ordinary course of nature, even if none of those injuries individually measures up to such sufficiency. The sufficiency spoken of in this clause, as already noticed, is the high probability of death in the ordinary course of nature, and if such sufficiency exists and death is caused and the injury causing it is intentional, the case would fall under clause Thirdly of Section 300. All the conditions which are a prerequisite for the applicability of this clause have been established and the offence committed by the accused, in the instant case was 'murder'."*

20. In this case, it is evident from the testimony of the medical witnesses, P.W.3 and P.W.4, that the general condition of the injured was very poor and that he ultimately died in the hospital at about 3:50 A.M. on 26.11.1983. In the post-mortem doctor opined that death was caused by shock and haemorrhage resulting from the ante-mortem injuries. These circumstances were of considerable significance in determining the nature of the offence and the requisite intention or knowledge attributable to the assailants. The trial court failed to examine whether the nature, number, location and severity of the injuries, considered cumulatively, disclosed an offence graver than the one for which the accused-appellants were convicted.

21. The impugned judgment, to the extent that it determines the nature of the offence without a proper and holistic assessment of the

oral and medical evidence, reflects a mechanical approach to the adjudication of the case. The trial court was required to assess the prosecution evidence as a whole and to correlate the eyewitness account with the medical findings, particularly the extensive fractures, the injuries over the chest and back, the poor general condition of the injured and the medical opinion regarding the cause of death. Failure to undertake such an assessment has resulted in an incomplete appreciation of material evidence.

22. Before asserting that *injury No.10* was independently sufficient to cause death, the medical evidence must specifically support that conclusion. The post-mortem report, as reproduced above, describes injury No.10 as involving the left leg and foot, with fractures and punctured wounds caused by fractured bone fragments. It does not, by itself, establish that this particular injury was independently sufficient to cause death. The safer and legally more sustainable formulation is that the cumulative effect of all injuries, the cause of death, and the intention or knowledge of the assailants was required to consider.

23. It is also evident from the prosecution evidence that the deceased, Leeladhar Sharma, was himself the informant of the case. The written report (Ext. Ka-1) was scribed by Ram Sewak (P.W.2) at the dictation of the injured, who was then alive and in a position to narrate the occurrence. P.W.2 proved the written report before the trial court, and no material contradiction has emerged in his testimony regarding its preparation or the narration made by the deceased. Thus, the written report was not based merely upon hearsay information supplied by another person, but substantially embodied the version of the occurrence given by the injured himself. The evidence of the Investigating Officer, S.I. Siyaram Pandey (P.W.6), further assumes significance. *He recorded the statement of the injured/deceased during the course of investigation,*

and the version disclosed by the deceased substantially corresponded with the facts narrated in the written report and the FIR. The consistency between the initial report and the subsequent statement, considered alongside the prompt registration of the case and the medical evidence, lends assurance to the prosecution version. These circumstances were material for determining the reliability of the deceased's account and ought to have received due consideration by the trial court.

24. The aforesaid circumstances also required the trial court to examine the evidentiary value of the statement made by the deceased in the light of Section 32(1) of the Indian Evidence Act, insofar as the statement related to the cause of his death or the circumstances of the transaction which resulted in his death. A statement of this nature does not become inadmissible merely because it was not recorded in the form of a formal dying declaration. If its essential requirements are satisfied and its authenticity and reliability are established, it may constitute substantive evidence. The trial court, however, failed to undertake a proper and comprehensive appraisal of this material aspect of the prosecution case, thereby leaving an important piece of evidence inadequately considered.

25. Learned A.G.A., on instructions and upon perusal of the record, submits that neither the State nor the victim has preferred any appeal or revision seeking enhancement of the sentence or challenging the conviction of the accused-appellant under Section 325 read with Section 34 IPC, with a view to securing their conviction under Section 302 or Section 304 IPC. In the absence of any such proceeding, this Court is required to consider the present appeal within the scope of the challenge before it and the limits of its appellate jurisdiction.

26. Upon an overall consideration of the ocular testimony, the statement of the deceased, the medical evidence and the attending circumstances, this Court finds that the trial court's assessment of the nature and gravity of the offence is open to ‘serious doubt’. The extensive injuries sustained by the deceased, their distribution over different parts of the body, the fractures and the medical opinion regarding the cause of death required a more searching examination of the applicability of Sections 302 or 304 IPC. Nevertheless, in the absence of an appeal for enhancement or for alteration of the conviction to a graver offence, this Court does not consider it appropriate to enhance the punishment or convert the conviction into one under Section 302 or Section 304 IPC in the present appeal. The surviving appellant cannot be subjected to an enhanced conviction or sentence without due regard to the applicable statutory provisions, the scope of the proceedings and the safeguards of fair hearing.

27. It is also relevant that the judgment of conviction was delivered by the then Sessions Judge, Bareilly, Sri U.S. Gupta, on 09.07.1984. More than four decades have elapsed since the decision of the trial court. Having regard to the extraordinary passage of time, the nature and scope of the present appeal, and the absence of any challenge seeking enhancement, this Court considers that reopening the matter for the purpose of enhancement would serve no fruitful purpose at this belated stage. This consideration, however, shall not be construed as approval of any infirmity in the trial court's appreciation of the evidence.

28. The manner in which the learned Presiding Officer has ignored material evidence and failed to undertake a proper, objective and holistic appreciation of the ocular and medical evidence reflects a serious dereliction in the discharge of judicial responsibility. Such perfunctory and erroneous appraisal of

evidence, particularly in a case involving the ‘death’ of a person following multiple grievous injuries, is not merely an error of appreciation but undermines the very object of criminal adjudication. A mechanical approach to the evaluation of material evidence, resulting in findings divorced from the record, is tantamount to making a mockery of the criminal justice system and cannot be countenanced in the administration of justice.

29. Having regard to the facts and circumstances of the case in totality, this Court finds no reliable or sufficient ground to extend the benefit of probation to the surviving appellant, Munna Singh. The prosecution evidence, as appreciated in the preceding discussion, establishes his active participation in the assault upon the deceased, who sustained numerous serious injuries and subsequently succumbed to them. The nature of the occurrence, the gravity of the injuries and the circumstances in which the offence was committed do not warrant the exercise of discretion in favour of release on probation. Accordingly, the prayer for the benefit of probation is rejected.

30. It has been brought to the notice of this Court that the surviving appellant, Munna Singh, is presently in jail. In view of his custody, no direction requiring him to surrender is necessary. The period of detention already undergone by him in the present case shall be set off against the substantive sentence in accordance with Section 428 Cr.P.C.

31. In view of the foregoing discussion, and notwithstanding the deficiencies noticed in the trial court's appraisal of certain aspects of the evidence, the conviction of the surviving appellant, Munna Singh, under Section 325 read with Section 34 IPC, together with the sentence awarded by the trial court, is affirmed.

32. The appeal, insofar as it relates to the surviving appellant Munna Singh, is accordingly **dismissed.**

33. Let a copy of this judgment be transmitted **within a week** to the trial court concerned along with trial court record for compliance.

34. The Registrar (Compliance) is also directed to serve a copy of this order within **48 hours** by FAX/e-mail to the concerned court through District & Sessions Judge, Bareilly for compliance.

(Santosh Rai,J.)

October 13 2026
Asha

Digitally signed by :-
ASHA
High Court of Judicature at Allahabad